K Venkata Krishan Murthy vs State Gnct Of Delhi on 24 April, 2023

Author: Swarana Kanta Sharma

Bench: Swarana Kanta Sharma

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ BAIL APPLN. 262/2023
K VENKATA KRISHAN MURTHY
Through: Mr. Pradeep Choudhary an
Vikrant Choudhary, Advoc

versus

STATE GNCT OF DELHI ..
Through: Mr. Amol Sinha, ASC for
with Mr. Kshitiz Garg, M
Kumar and Ms. Chavi Laza
Advocates
CORAM:
HON'BLE MS. JUSTICE SWARANA KANTA SHARMA
ORDER

% 24.04.2023

1. The instant application under Section 439 of the Code of Criminal Procedure, 1973 (C.r.P.C.') has been filed on behalf of applicant seeking regular bail in FIR bearing No. 85/2021, registered at Police Station Economic Offences Wing (EOW), South East, New Delhi for the offences punishable under Sections 406/420 of the Indian Penal Code, 1861 ('IPC').

2. Brief facts of the present case are that complainant, Mr. Bhusan Ohri, and 20 other victims had filed a complaint. It is allegedly stated in the complaint that accused/applicant and his associates had induced and cheated the companies of the complainants through his firm M/s Magnitech Engineers and M/S Magni Engineers Pvt Ltd, by luring the complaints that he would register them with various defence establishments located throughout India under the make in India Scheme, so that they could receive large defence orders for supply of their products in CSD canteens. Further, accused persons including the applicant/accused represented themselves as consultants in defence sector and assured that they would help the complainants to win purchase orders/ tenders/ bids in the defence industry. Further, applicant/accused had allegedly received Rs. 5-6 lakh in advance for consultation fees to satisfy the conscious of complainants, accused/applicant had executed consultancy of fees protection agreement and had given post-dated cheques. Applicant/accused had promised to repay the consultation fees if his firm failed to arrange orders within 6 months. Further,

it is alleged that total 35 victims had approached EOW against accused/applicant for total cheated amount of Rs. 2 crores.

3. During investigation, it is alleged that firms of accused were registered as vendor with Defence Research and Development Organisation but had never applied for any bid, and bank accounts of alleged persons had been freezed. Further, during investigation, it was found that accused/applicant had obtained cheated amount in various bank accounts and had also provided cheques to all the victims which got dishonoured by the bank. Thereafter, one post-dated cheque was issued in the name of Magni Engineers Pvt, Ltd. by applicant's wife Someshwari Kokkirala, director of the company to M/s Essential Blends as security amount. Further, notices were issued to the accused but he never joined the investigation. Thereafter, on 19.02.2022, accused was arrested from Dehradun by the team of EOW. During interrogation, he stated that accused also created a fake website with pictures of defence equipment's to win the confidence of the victims. Applicant/accused had even setup a fake work space in Greater Kailash, New Delhi with 20-25 employees to allure victims. It is also alleged that according to search report of ICJS, the accused is involved in seven cases of fraud.

4. Learned counsel for the petitioner submits that applicant is not habitual offender and there were only two FIRs registered against the applicant. He further submits that he is on regular bail in FIR bearing no. 358/2017 and had been regularly appearing before the concerned court. He further submits that applicant was released on interim bail on 30.06.2022 and never evaded the process of law. Therefore, bail be granted.

5. Learned APP for the state, strongly opposes the present bail application, and submits that allegations against the present applicant are serious in nature. He further submits that the accused/applicant had cheated many people and never joined the investigation, subsequently had been arrested from Dehradun, Uttarakhand. He further submits that if bail is granted to him, he may jump bail and may tamper with the evidences. Therefore, bail application be rejected.

6. After hearing arguments and going through the case file, this Court is of the opinion that in the present case though it may not be disputed that the applicant was the registered vendor with the establishments of DRDO, however, the conduct of the present applicant whereby he had issued cheques to the complainants on the pretext that in case they would not be tendered order in their favour, the money will be given back, in itself shows his intention and the way the offence in question was committed. The bank account of the applicant had no money when the matter came up for investigation as he had siphoned off the money in another accounts. The counsel for the accused/applicant could not give an explanation regarding the same. In this case, he had also failed to join investigation despite being given notice under Section 41 of Cr.P.C. though it was not disputed by the State that he lives in Dehradun and had been contacted by the IO regarding issuance of notice. However, he had told the IO that he will appear before him as and when he wishes to do so. The accused/applicant is also involved in seven other cases of similar nature and has cheated multiple victims. It is to be noted that this is a multi-victim case wherein the offence is allegedly committed against 35 persons which adds to the gravity of the offence. It also transpired during investigation that as per reply of DRDO firms of accused were registered with DRDO but no tender

inquiry had been issued since its date of registration. Moreover, a total amount of Rs. 2 crores were lured from various victims.

7. Considering the overall facts and circumstances of the case, no ground for bail is made out and the gravity of offence committed.

8. Accordingly, the present bail application stands dismissed.

9. Nothing expressed herein will tantamount to any expression on merit of the case during trial.

10. The order be uploaded on the website forthwith.

SWARANA KANTA SHARMA, J APRIL 24, 2023/zp Click here to check corrigendum, if any